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RENEWAL OF THE CERTIFICATE OF REGISTRATION OF HUMAN AND VETERINARY MEDICINES

This guideline document is intended to provide guidance on the renewal of the certificate of registration of human and veterinary medicines.

Document History

Final Version	Reason for Amendment	Effective Date
1	New	22 June 2022
2	Extensive amendments in line with stakeholder comments after the implementation pilot study	31 May 2023
3	Amended in line with the updated document number for eCTD validation and technical screening for renewals Edited Section 4.1 point 6 to clarify that if no formal notification nor renewal is received, the medicines register will be changed to "Cancelled"	06 July 2023
4	Amended in line with stakeholder comments Edited 4.1 point 5 to include further information on the submission process Edited 4.1 point 10 to now point 11 to provide clarity on clones/replicas of a parent application, as well as different strengths Edited 4.3 Module 1, PQR and Pharmacovigilance requirements	22 August 2023
5	Edited Section 1 to remove old naming convention Edited 4.1 to include clarification on the applicant renewal schedule Edited 4.1 & 4.2 to delete any reference to the Service Desk/Quantum Edited 4.3 Module 1: removed requirement for proof of approval of the PI/PIL in working folder Moved declaration that data related to any commitments/compliance from QIS/QOS to 1.0 Deletion of QOS requirements Included medicine register details Updated product quality review (PQR) and Pharmacovigilance for clarity	11 September 2024

6	Clarification of the process to renewal of the certificate of registration Inclusion of requirements in related to ToAs Amendments to application payment requirements Deletion of reference to “temporary certificate” and related information Expansion of the review process to include permitted query rounds and extensions Expansion of the technical requirements section, alignment 2.21 South African Specification for eCTD Regional Module 1 v3.1 Update to related documents Expansion of guideline title	17 February 2025
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Contents

Document History.....	1
Glossary	4
1. INTRODUCTION	6
1.1 PURPOSE	7
1.2 SCOPE	7
2. LEGAL PROVISION.....	7
3. POST-REGISTRATION VARIATION TO MEDICINAL PRODUCTS	7
3.1 GENERAL REQUIREMENTS.....	8
3.2 PROCESSING OF APPLICATIONS	9
3.3 TECHNICAL REQUIREMENTS	10
4. REFERENCES	15
5. VALIDITY	15
6. ANNEXURES.....	15
6.1 Annexure 1: Renewals Process Flow Diagram	15

Glossary

Abbreviation/Term	Meaning
Active Pharmaceutical Ingredient (API)	Means a substance or compound that is intended to be used in the manufacture of a medicinal product as a therapeutically active compound (ingredient)
Authority	Means the South African Health Products Regulatory Authority or its acronym "SAHPRA"
BMCT(s)	Border Medicines Control Technicians These are SAHPRA-employed medicines control officials stationed at the ports of entry for medicines
Clone	Is defined as an application submitted by the Innovator as a copy of its own product under a different proprietary name at any stage during the product life cycle (of the registered product)
CPP	Certificate of Pharmaceutical Product (WHO Certification Scheme)
Drug Master File	A drug master file (DMF) is a master file that provides a full set of data on an API
DVP	Digital Variations Portal
eCTD	Electronic Common Technical Document It is the standard dossier format for submitting applications and variations to the majority of global medicines regulators, including SAHPRA
Finished Pharmaceutical Product (FPP)	Means a product that has undergone all stages of production, including packaging in its final container and labelling
FTP	File Transfer Protocol
GMP	Good Manufacturing Practice
HCR	Holder of the Certificate of Registration
HPA	Health Products Authorisation
IVD	<i>In-Vitro</i> Diagnostics
Manufacturer	Means a person or firm that is engaged in the manufacture of pharmaceutical product(s)
Medicinal product, Drug, medicine or pharmaceutical product	Medicine a) Means any substance or mixture of substances used or purporting to be suitable for use or manufactured or sold for use in: i) the diagnosis, treatment, mitigation, modification or prevention of disease, abnormal physical or mental state or the symptoms thereof in humans; or ii) restoring, correcting or modifying any somatic or psychic or organic function in humans; and includes any veterinary medicine
PBRER	Periodic Benefit-Risk Evaluation Report

Abbreviation/Term	Meaning
<i>Pharmacopoeia</i>	Means a current edition of the British Pharmacopoeia, European Pharmacopoeia, United States Pharmacopoeia, International Pharmacopoeia and Japanese Pharmacopoeia
<i>PI</i>	Professional Information
<i>PIC/S</i>	Pharmaceutical Inspection Convention & Pharmaceutical Inspection Co-operation Scheme
<i>PIL</i>	Patient Information Leaflet
<i>PQR</i>	Product Quality Review
<i>PSUR</i>	Periodic Safety Update Report
<i>QIS</i>	Quality Information Summary
<i>Registration of a medicine</i>	Means the registration of a product by SAHPRA for the purpose of selling such product in South Africa after evaluation for safety, efficacy and quality, and whereby the product is included in the register referred to in Section 13 of the Medicines and Related Substances Act, 101 of 1965, as amended.
<i>Replica</i>	Is defined as a copy of an already registered generic product, submitted by the same or by another applicant at any stage during the product life cycle (of the registered product).
<i>RRAs</i>	Recognised Regulatory Authorities A term used to refer to the regulatory authorities with which SAHPRA aligns itself.
<i>SAHPRA</i>	South African Health Products Regulatory Authority
<i>SAPC</i>	South African Pharmacy Council
<i>ToA</i>	Transfer of Applicant
<i>Variation</i>	Means a change to any aspect of a medicinal product, including but not limited to a change to formulation, method and site of manufacture, specifications for the finished product and ingredients, container closure type or specifications and container labelling, indications and product information
<i>WHO</i>	World Health Organisation
<i>SAO</i>	Senior Administrative Officer
<i>EC</i>	Evaluator Co-ordinator
<i>PC</i>	Portfolio Co-ordinator

1. INTRODUCTION

The registration of medicines in South Africa is governed by the provisions and requirements of the Medicines and Related Substances Act, 101 of 1965 (hereinafter “the Act”), as amended, and its subordinate Regulations and Guidelines. The South African Health Products Regulatory Authority (“SAHPRA” or “the Authority”) is a statutory body established in terms of the Act to provide for the monitoring, evaluation, regulation, investigation, inspection, registration and control of medicines, Scheduled substances, clinical trials and medical devices, In-Vitro Diagnostics (IVDs) for human and animal use and related matters in the public interest.

It is acknowledged that during the course of five (5) years, several aspects of the registered medicinal product may change significantly as a result of notified variations. These collective changes may significantly impact the quality, safety, and efficacy of the product and, therefore, the objective of renewal of the certificate of registration is to ensure that the product continues to be safe, effective and of good quality for ongoing public use.

There are benefit-risk assessments performed throughout the product life cycle, including reviews of annual reports of registered medicines.

These guidelines, therefore, accommodate the steps that are followed from the submission of a renewal of the certificate of registration application to the outcome, the timeframe and procedure for the Authority to amend, where necessary, the conditions of renewal of the certificate of registration of a particular product.

These guidelines present SAHPRA’s current thinking on technical requirements necessary to facilitate the renewal of the certificate of registration of medicinal products. Evaluation of the applications will, as far as possible, be based on the principles laid down in this guideline document. It is worth noting that conditions of registration specify that current Good Manufacturing Practice (GMP) is to be maintained, which includes the expectation for the latest technological and scientific methods to be used in the manufacture and control of products. SAHPRA will, at the time of a renewal of the certificate of registration, expect variations to have been submitted separately for evaluation, to ensure that the dossier is in line with current GMP, as well as with the latest international scientific requirements. Applicants are also requested to read these guidelines together with the Medicines and Related Substances Act, 101 of 1965, as amended, and other relevant Regulations made thereunder.

This guideline document is divided into three major parts stipulating the general requirements and application procedures for human and veterinary medicinal products; processing of applications; and technical requirements for application for the renewal of the certificate of registration of medicinal products.

Applicants are requested to carefully read these guidelines and submit the renewal application via the FTP system.

Applicants should ensure that the correct file name convention, as indicated on the SAHPRA website: <https://ectd.sahpra.org.za/>, is used.

1.1 PURPOSE

To provide guidance on the submission of applications for the renewal of the certificate of registration of medicines.

1.2 SCOPE

These guidelines are relevant to applications for the renewal of the registration certificate of both human and veterinary medicinal products. These guidelines do not extend to medical devices, IVDs and complementary medicines, as SAHPRA does not currently register these types of products.

2. LEGAL PROVISION

The legal provision for the implementation of a renewal of the certificate of registration is covered in the Medicines and Related Substance Act, 101 of 1965, as amended. Section 2B(1)(c) provides for the periodic re-evaluation or re-assessment and monitoring of medicines, medical devices and IVDs. Section 15(6)(a)(b) provides for the registration of medicines, medical devices or IVDs. It further states that any registration under this section may be made subject to such conditions as may be determined by the Authority; and shall, in the case of medicines, be valid for a period of five years.

3. POST-REGISTRATION VARIATION TO MEDICINAL PRODUCTS

All variations to a registered pharmaceutical product shall be made according to requirements stipulated in the Variations Addendum and relevant variation guidelines. This process will not be interrupted.

No variations will be accepted as part of the renewal of the certificate of registration as this will impact the processing and swift turn-around of renewals. The dedicated Renewals workstream will only review renewal applications. No applications with pending Transfer of Applicant (ToAs) variations will be accepted. Applicants should ensure that only applications where the ToA has been finalised are submitted for the renewal of registration.

For applications that have a renewal query that warrants variation, the applicant shall submit a variation indicating that this is a variation in response to a renewal query in the application letter and submit the proof of submission in their response to the renewal query.

3.1 GENERAL REQUIREMENTS

For all applications for the renewal of the certificate of registration, a full Electronic Common Technical Document (eCTD) baseline submission, in line with the General Information Guideline for registration, should be submitted (only if the dossier has not yet been converted to eCTD). A roadmap has been devised for each applicant based on the number of active product registrations they have, to allow adequate time for these baseline submissions to be prepared and submitted.

Renewal of the certificate of registration applications should be made to the Authority at least six (6) months before the expiry of the validity of registration of a particular medicinal product. Registration certificates issued from 1 October 2022 contain an expiry date; however, older products' registration certificates do not, and in these cases, renewal dates will be via the applicant-specific renewal schedule. On this schedule, SAHPRA has divided these into different years and quarters per year, so that the Authority can receive the renewal submissions for the relevant products in the **first month** of each of those identified quarters.

Please take note of the following:

1. A screening checklist, with specific reference to renewal applications, is to be completed by applicants and included in Module 1.2.5 (eCTD Validation and Technical Screening for Renewals: GLF-HPA-04A).
2. All applications and supporting documents shall be in English. Any submitted documents which are in a language other than English must be accompanied by an English translation.
3. The responsibility of applying for the renewal of the product's certificate of registration remains with the company responsible for the introduction of the product into the South African market, i.e., the Holder of Certificate of Registration (HCR), or the new HCR if there was a transfer of the registration certificate since the initial registration or last renewal of the certificate of registration. SAHPRA will only liaise with the current HCR listed for the product and not with any proposed HCRs because of a pending transfer of registration certificate. No transfer of registration certificate may be submitted while a renewal application is still being reviewed. When applications are transferred to a new HCR, it remains the previous HCR's responsibility to inform the new HCR of the renewal due date, as per the renewal roadmap. The roadmap will not be amended by SAHPRA to reflect

transfers of applicant.

4. Applications must be duly completed and supported by all the required documents, as stipulated in this guideline and supplementary documents, and where appropriate in line with the current edition of the General Information Guideline.
5. The application should be submitted online via the SAHPRA FTP in line with the General Information guideline.
6. The application should be submitted along with a non-refundable application fee as stipulated in the Fees gazette.
7. Applicants who intend to cancel their registrations, should follow the withdrawal procedure in the 2.21 ZA-SAHPRa eCTD specifications. **A notification should be sent to renewals@sahpra.org.za.** If the applicant has not formally cancelled the application or submitted the renewal of the application, it is the opinion of the Authority that the Holder of the Registration Certificate has failed to comply with the condition to which medicine was registered. The applicant will be informed of the cancellation of the product's registration via the medicines register, as the status will be changed to "Cancelled" if no renewal application is received.
8. Clones/replicas of a parent application, as well as different strengths (of same product range) registered at different times, maybe submitted at the same time for renewal as one renewal application provided the relevant strengths and clones/replicas are due for renewal, i.e., registered in 2018 and before. This may be done on a case-by-case basis and should be done at the time of the first application that is due for renewal.
9. All correspondence related to the processing of the renewal applications will be sent to an applicant(s) via email. HCRs should ensure that the Authority is informed and updated on any changes to the contact person(s) or details.

3.2 PROCESSING OF APPLICATIONS

Registration renewal applications undergo the following stages from the time of application submission until the final renewal outcome:

1. If an application is found to be incomplete upon screening, the applicant will be notified by SAHPRA of this outcome via the applicant(s) email and will be requested to amend and resubmit the application
 - 1.1. Only one round of screening queries will be generated.
 - 1.2. The response timeline is 10 working days.
2. Evaluation of the application shall be carried out within the timelines stipulated (please refer to the

attached renewal process flow diagram in **Annexure 1)** and the respective outcomes will be communicated to the applicant(s) via email.

3. During the evaluation, SAHPRA may request further information and additional supporting documents from the applicant in line with the guideline requirements. The required information should be made available within thirty (30) working days from the date of the request to facilitate timely renewal of the relevant product.
 - 3.1. Only two rounds of evaluation queries will be generated.
 - 3.2. The response timeline for each round is 30 working days.
4. The notification of the renewal of the certificate of registration of the product shall be communicated via email, followed by the issuance of a revised registration certificate. Applicants should carefully read the conditions under which the medicine is registered (appended to the certificate) and adhere to them throughout the product life cycle.
5. The full renewal review timeframe is 120 working days (six (6) months), from the time of submission of a renewal of the certificate of registration application by an applicant to the issuance of the revised registration certificate by SAHPRA.

3.3 TECHNICAL REQUIREMENTS

All applications for the renewal of the certificate of registration of Human medicines refer to the latest version of the 2.21 ZA-SAHPRA eCTD Specification and document matrix available on the SAHPRA website.

All applications for the renewal of the certificate of registration for Veterinary medicines refer to the latest version of 2.58 ZA- SAHPRA CTD esubmission Specification available on the SAHPRA website.

All applications for renewal of the certificate of registration of human and veterinary medicinal products shall be accompanied by the following documentation/requirements:

MODULE 1: ADMINISTRATIVE & PRESCRIBING INFORMATION

Section	Requirements
1.0.1	Letter of Application
1.0.3	Correspondence from SAHPRA Variation approval letters
1.2.1	Application Form (inclusive of up-to-date Variation History)
1.2.2.1	Proof of Payment Note: Applicant to include a note that proof of payment will be submitted subject to publishing of fees in the Government Gazette. <i>The proof of payment must be submitted once the fees have been gazetted.</i>

Section	Requirements
1.2.5	Validation Template Note: Document should also be included in MS Word format
1.3	South African Product Information 1. Copies of the current SAHPRA-approved Professional Information (PI) 1.3.1.1.1 and Patient Information Leaflet (PIL) 1.3.2.1 Note: Documents should also be included in MS Word format
1.3.6	Sample artwork Coloured mock-ups of packaging of the product for all strengths, i.e., blister, label and unit carton in PDF format. 1.3.3.1 Note: Facsimile labels will be accepted for dormant products.
1.5.A	Additional Types of Applications Specific Requirements (Module 1.5.A) 1. A declaration that data related to any commitments/compliance with conditions which the product was registered under, must be submitted. 2. A declaration that the risk assessment for applications registered without nitrosamine risk assessment has been done and the necessary updates have been submitted to the Authority. 3. The Professional Information (PI) and Patient Information Leaflet (PIL) from five (5) years prior to the renewal application.
1.5.2.2.1	Medicine Register Details The information that has been applied for through the Digital Variations Portal (DVP) and approved through the variations' summary must be added onto Module 1.5.2.2.1 medicine register details under the "proposed column" and NOT the "current column". Only information appearing on the current registration certificate must be included under the "current column".
1.5.2.2.2	The current registration certificate(s) for the product(s), as well as copies of DVP Variation Summaries regarding site variations received in the preceding five (5) years.
1.7.3	Latest GMP Certificate or the Appropriate Licence: 1. Certificates of GMP Compliance of the Active Pharmaceutical Ingredient(s) manufacturing facilities, issued by Recognised Regulatory Authorities (RRAs) or by the National Competent Authority of the country of manufacture. 2. Certificates of GMP Compliance of the Finished Pharmaceutical Product(s) (FPP) manufacturing facilities, issued by RRAs. Certificates should be provided for all sites involved in the testing, manufacturing and packaging of the FPP. 3. Section 22C(1)(b) Licence(s) issued by SAHPRA for local sites.
1.7.7	South African Pharmacy Council (SAPC) Registration: Registration of Pharmacy, pharmacist responsible/authorised to communicate with the Authority and Responsible Pharmacist with the SAPC.
1.7.14	Product Quality Review (PQR)

Section	Requirements
	A Product Quality Review (PQR) should be submitted with the objective of verifying the consistency of the quality of the Finished Pharmaceutical Product (FPP) and its manufacturing process. <i>Please refer to Product Quality Review (PQR) below for details.</i>
1.8.2	Risk Management Plan
	The risk-benefit assessment report of the preceding five (5) years. Please refer to Pharmacovigilance below for details.
1.10.6	Certificate of Pharmaceutical Product (CPP) (WHO Certification Scheme) A CPP issued by the relevant Health/Regulatory body in the country of manufacture of the product or, if not registered in the country of origin, a CPP from a Health Authority of a country where the product is registered and marketed (legalisation/notarisation not required). This requirement is not applicable to products manufactured in South Africa.
3.2.R.8	Other
	Quality Information Summary (QIS) 1. Completed SAHPRA-specific QIS to be submitted in Module 3.2.R.8 – Other and the working documents. Refer to the SAHPRA QIS (GLF-PEM-02C) templates.

PRODUCT QUALITY REVIEW (PQR)

The Product Quality Review report of the preceding five (5) years, containing the information stipulated in the Pharmaceutical Inspection Convention & Pharmaceutical Inspection Co-operation Scheme (PIC/S) GMP Guide and following the guidance provided therein, should be submitted with the objective of verifying the consistency of the quality of the FPP and its manufacturing process.

Rejected batches should not be included in the analysis but should be reported separately together with the reports of failure investigations, as indicated below. Batches produced for other markets may be included but are required to have the same formulation and manufacturing process of the product registered in South Africa.

Reviews should be conducted with no fewer than 10 consecutive batches manufactured over a period of the past 12 months or, where 10 batches were not manufactured in the past 12 months, no fewer than 25 consecutive batches manufactured over a period of the past 36 months* and should at least include:

- i. A review of starting materials including packaging materials used in the product, especially those from new sources and, in particular, the review of supply chain traceability of active substances.
- ii. A review of critical in-process controls and finished product results.
- iii. A review of all batches that failed to meet established specification(s) and their investigation.

- iv. A review of all significant deviations or non-conformances, their related investigations, and the effectiveness of resultant corrective and preventive actions taken.
- v. A review of all changes carried out to the processes or analytical methods.
- vi. A review of variations submitted, granted or refused, including those for third-country (export only) dossiers.
- vii. A review of the results of the stability monitoring programme and any adverse trends.
- viii. A review of all quality-related returns, complaints and recalls and the investigations performed at the time, including export-only medicinal products.
- ix. A review of the adequacy of any other previous product process or equipment corrective actions.
- x. For new registration applications and variations to registered dossiers, a review of post-marketing commitments.
- xi. The qualification status of relevant equipment and utilities, e.g. HVAC, water, compressed gases, etc.
- xii. A review of any contractual arrangements, as defined in Chapter 7 of the PIC/S GMP Guide Part I, to ensure that they are up to date.
- xiii. A summary report of Post-Marketing Surveillance activities in the preceding five (5) years.

**Batches manufactured at a lower scale than that stated above will be handled on a case-by-case basis and more extensive documentation may be required in such cases.*

Notes:

- 1. Product Quality Review (PQR) to be included in Module 1.7.14 Inspection reports or equivalent document, only to be updated for registration renewal applications, not routinely.
- 2. Reviews should include data from all batches manufactured during the review.
- 3. Data should be presented in tabular or graphical form, where applicable.
- 4. PQRs should not be summaries of the outcome of review without data.

PHARMACOVIGILANCE

In order to support the renewal of the product, a risk-benefit assessment report and risk-benefit conclusions by the HCR for the preceding five (5) years should be submitted (included in Module 1.8.2).

i. The risk-benefit report should contain the following sections:

- A summary report of all adverse drug reactions observed in the preceding five (5) years and actions taken, including medication errors, potential medication errors, and including lack of

efficacy, off-label use, misuse and abuse.

- An executive summary report of the Periodic Risk-Benefit Evaluation Reports (PBRERs) or Periodic Safety Update Reports (PSURs) (included in Section 1.8.2 Risk Management Plan).
- ii. **The Risk-benefit conclusions by the Holder of the Certificate of Registration (HCR), namely by the Clinical Expert or the HCR Responsible Pharmacist should:**
- Confirm that no new clinical data are available that change or result in a new benefit-risk balance evaluation.
 - Confirm that the product can be safely renewed for a 5-year period, or any action recommended or initiated should be specified and justified.
 - Confirm that the Authorities have been kept informed of any additional data significant for the assessment of the benefit-risk balance of the product concerned.
 - Confirm that the product information is up to date with the current scientific knowledge including the conclusions of the assessments and the recommendations made.

QUALITY INFORMATION SUMMARY (QIS)

1. Completed SAHPRA-specific QIS to be submitted in Module 3.2.R.8 – Other and the working documents. Refer to the QIS (GLF-PEM-02C) template.

4. REFERENCES

The following related documents are referenced:

1. PIC/S Good Manufacturing Practice (GMP) Guide Part I (<https://picscheme.org/>)
2. Medicines and Related Substances Act, 101 of 1965, as amended, together with relevant Regulations
3. Variations Addendum for Human and Veterinary Medicines: SAHPGL-HPA-06
4. General Information: SAHPGL-HPA-07
5. eCTD Validation and Technical Screening for Renewals: GLF-HPA-04A
6. QIS Template: GLF-PEM-02C
7. Multiple Applications: SAHPGL-HPA-08

5. VALIDITY

This guideline document is valid for a period of five (5) years from the effective date of revision and replaces **Renewal of Human and Veterinary Medicines Requirements and Process Guideline, SAHPGL-HPA-04-v4 dated 11 September 2024**. It will be reviewed in line with this timeframe or as and when required.

6. ANNEXURES

6.1 Annexure 1: Renewals Process Flow Diagram